

		right to seek the relief requested in a procedurally appropriate manner.
01498685	Sample - Elder Abuse	TENTATIVE RULING Case: Sample - Elder Abuse 01498685 Calendar No: 6 Date: 09/23/26 MOTION TO SEAL (ROA 39) Petitioner Tafrica Leggett moves to seal court records. (ROA 39.) Unless confidentiality is required by statute or rule of court, California court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550(c).) "Probate proceedings . . . are not closed proceedings. No statute exempts probate files from the status of public records." (<i>Copley Press, Inc. v. Superior Court</i> (1998) 63 Cal.App.4th 367, 376.) When individuals employ the public powers of state courts to accomplish private ends, "they do so in full knowledge of the possibly disadvantageous circumstance that the documents and records filed ... will be open to public inspection." (<i>Ibid.</i>) Absent circumstances not present here, the court may seal the records at issue only if it expressly finds facts establishing that: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).) The party moving to have a record sealed bears the burden of proving such facts. (<i>See H.B. Fuller Company v. Doe</i> (2007) 151 Cal.App.4th 879, 894-895.) Here, Petitioner states that "documents have been filed that contain sensitive and personal information, including medical records, social security numbers, and copies of our

		drivers licenses." Petitioner requests that the court "seal or redact the sensitive documents." While the court agrees that the foregoing material could be sealed, Petitioner did not specifically identify any document or portions of documents that she wishes to be sealed, nor did Petitioner provide redacted copies of such documents for the public record. Petitioner has not complied with California Rules of Court, rules 2.550-2.551, which rules set forth the procedures for sealing of public court records. There are other procedural defects. The motion fails to comply with Code of Civil Procedure section 1010 and California Rules of Court, rule 3.1110(a) in that it fails to give notice of the nature of the order sought and the grounds for the issuance of the order. It further fails to comply with California Rules of Court, rules 3.1112, 3.1113 and 3.1115. The court further notes that there is no proof of service accompanying this motion. Based on the foregoing, the court's tentative ruling is to deny the motion without prejudice to Petitioner's right to seek the relief requested in a procedurally appropriate manner. [Motion Type]
01510686	Pfrang - Elder Abuse	TENTATIVE RULING Case: Pfrang - Elder Abuse 01510686 Calendar No: 7 Date: 09/23/26 MOTION FOR WRIT OF POSSESSION (ROA 31) Petitioner Mayumi Pfrang ("Petitioner") moves for a writ of possession to recover a 2005 Toyota Corolla valued at approximately \$4,800.00 that is allegedly in the possession of Julie Renee Amroso. Code of Civil Procedure § 512.010 provides: "(a) Upon <u>the filing of the complaint or at any time thereafter</u>, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for